

Bijendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 October 2023 · 2023:AHC:201540-DB · Writ - C No. 30632 of 2023 · **Writ disposed of; petitioner relegated to Ombudsman under clause 7.10(iv).**

HEADNOTE

Writ challenging the District Consumer Dispute Redressal Commission's order dated 25.05.2023 was disposed of on the Electricity Department's plea that an appeal to the Ombudsman under clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 is an efficacious alternative remedy. If the petitioner approaches the Ombudsman under that clause within three weeks, the Ombudsman shall decide the matter in accordance with law within two months of filing.

FACTUAL SUMMARY

Bijendra Singh invoked the writ jurisdiction of the Allahabad High Court against the order dated 25 May 2023 of the District Consumer Dispute Redressal Commission, Gautam Buddha Nagar. The State of Uttar Pradesh and five others were respondents. Counsel for the Electricity Department submitted at the hearing that the petitioner had an efficacious alternative remedy of an appeal to the Ombudsman under clause 7.10(iv) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

Ombudsman appeal as alternate remedy

HOLDING

The writ challenging the District Consumer Dispute Redressal Commission's order dated 25.05.2023 was disposed of on counsel's statement that an efficacious alternative remedy of appeal lies before the Ombudsman under clause 7.10(iv) of the U.P. Electricity Supply Code, 2005. If the petitioner approaches the Ombudsman under that clause within three weeks, the Ombudsman shall dispose of the matter in accordance with law within two months of filing. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The Division Bench treated an appeal to the Ombudsman under clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 as an efficacious alternative to the writ and disposed of the petition on that basis, allowing three weeks to approach the Ombudsman and two months for disposal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISTRICT CONSUMER DISPUTE REDRESSAL COMMISSION'S ORDER DATED 25.05.2023

The writ was disposed without examining that order. The grievance is for the Ombudsman if the petitioner files under clause 7.10(iv) within three weeks. ¶ 1